Prepared by Facilitate Inc.
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Vehicle Marketplace Platform - Software Development Agreement

This Software Development Agreement (this "Agreement") is entered into as of **October 13, 2026** ("Effective Date") by and between Facilitate Inc. ("Developer"), and **Antonio Cadet** ("Client"). Developer and Client are sometimes referred to in this Agreement individually as a "Party" and collectively as the "Parties."

WHEREAS, Developer is engaged in the business of web application development and possesses certain technical expertise in designing, developing, and testing software and related materials used in web applications; and

WHEREAS, Client wishes to engage Developer to deliver certain unique and proprietary software developed and/or customized specifically for Client (the "Software") and Developer is willing to accept the engagement to develop such Software on the terms and subject to the conditions set forth in this Agreement. NOW THEREFORE, in consideration of the mutual promises and covenants set forth herein and intending to be legally bound, the Parties hereto agree as follows:

1. ENGAGEMENT OF DEVELOPER

1.1 Scope of Engagement. Subject to the terms and conditions of this Agreement, Client hereby retains the services of Developer to design, develop, and implement the Software in accordance with the specifications, requirements, and deliverables ("Specifications") and the time schedule described in Exhibit "A" attached hereto and

incorporated herein by reference (collectively, the “Work”). Client will cooperate with Developer’s reasonable requests for information necessary to accomplish the tasks and objectives for completion of the Work.

1.2 Developer’s Duties and Responsibilities. Developer and Client will jointly define the Specification and Developer will: (a) Perform the Work in accordance with the Specification; (b) use reasonable efforts to deliver the Software to Client by the delivery deadline set out in the time schedule described in Exhibit “A” or as soon as commercially practicable in accordance with the Specification; and (c) manage the day-to-day activities. Developer shall be responsible for delivering and performing the professional services identified in Exhibit “A”.

1.3 Support and Maintenance. Any support and maintenance services, updates, versions, or new releases shall be contracted under a separate agreement between the Parties. Maintenance and support rights or obligations for any third party products or equipment that are used in the Software and are available through the respective vendors or manufacturers of such content and equipment shall be assigned by Developer to Client. Developer shall not use any intellectual property of any third party in the Software without Client’s written consent.

1.4 Independent Contractor. Developer is not an employee of Client. Developer shall not be eligible for any benefits given by Client to its employees. The Parties are and remain independent contractors. Developer may only use employees or subcontractors to develop the Software or otherwise complete the Work with advance written approval from Client. Nothing in this Agreement will be deemed to create an agency, partnership, or joint venture between the Parties. Neither Party has authority to bind the other or incur any liability or otherwise act on behalf of the other Party.

2. CLIENT RESPONSIBILITIES

2.1 Assigned Tasks. Client agrees to perform all of the tasks assigned to Client as set forth in this Agreement and to provide all assistance and cooperation to Developer in order to complete timely and efficiently the Work and execute all Change Requests.

2.2 Acceptance Testing. Client shall make available such personnel as necessary for testing the Software and training users of the Software and prepare complete acceptance test data for testing the Software. 2.3 Lawful Purpose. Client will only use the Software for lawful purposes.

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3. ACCEPTANCE OF SOFTWARE

3.1 Acceptance Test Plan. Client shall verify that the Software meets the agreed requirements of the Specification in accordance with the Acceptance Test Plan set forth in Exhibit A and, after so doing, shall notify Developer of its acceptance of the test. If Client does not accept the test, such rejection shall be explained by Client in writing and Developer shall promptly address the errors and/or issues underlying such rejection and modify the Software within two (2) days to resolve the same. If the errors and/or issues are not capable of being resolved in such time, Client shall grant a reasonable extension of the timeframe and Developer shall resolve the errors and/or issues within the extended timeframe. After Client accepts the test, it may put the Software in operation.

3.2 Approval. After the Software has passed acceptance testing, the thirty (30) day operational approval period begins. In the event Client discovers errors and/or functionality issues during the thirty (30) day approval period (the “Approval Period”), it shall promptly notify Developer and Developer shall modify the Software within two (2) days to resolve the errors and/or issues. If the errors and/or issues are not capable of being resolved in such time period, the parties shall agree upon a commercially reasonable extension of such time period, during which Developer shall resolve the errors and/or issues. Upon resolution of the errors and/or issues by Developer, Client shall notify Developer of its approval of the Software.

4. COMPENSATION AND PAYMENT

4.1 Fees and Expenses. Client will pay Developer a fixed fee for the Work according to the payment schedule described in Exhibit “B” attached hereto and incorporated herein by reference (“Payment Schedule”). All payments made to Developer under this Agreement must be in United States currency. Client will reimburse Developer for the cost of any development software or commercial software libraries that Developer deems necessary to complete the Work, subject to approval by Client.

5. TERM AND TERMINATION

5.1 Term. This Agreement is effective as of the Effective Date and will continue in full force and effect until complete payment for the Work is received by Developer, unless earlier terminated as provided in this Agreement.

5.2 Termination. Each Party may terminate this Agreement upon material breach by the other Party of one or more of the terms and conditions of this Agreement, provided that the breaching Party is notified in writing of the material breach and such breach is not cured within ten (10) days after receipt of such written notice. Termination for breach will not alter or affect the terminating Party’s right to exercise any other remedy for breach. Client may terminate this Agreement without cause upon seven (7) days advance written notice. In the event of termination without cause, Client agrees to pay the Developer for all Work performed in accordance with the terms of this Agreement, up to the date of notice of termination.

6. INTELLECTUAL PROPERTY RIGHTS

6.1 Work Made for Hire. Developer agrees that the development of the Software (but excluding Developer Tools) is “work made for hire” within the meaning of the Copyright Act of 1976, as amended from time to time, and that the Software shall be

the sole and exclusive property of Client. “Developer Tools” means the materials, information, trade secrets, generic programming codes and segments, algorithms, methodologies, processes, tools, data, documents, notes, programming techniques, reusable objects, routines, formulae and templates that: (a) are developed prior to the Software and utilized by Developer in connection with the Software; (b) are designed to perform generalized functions not specific to the particular requirements of Client or the Software; (c) do not contain any of Client’s Confidential Information or other information or items provided by Client; and (d) cannot reasonably be expected to provide Client an advantage over its competitors.

6.2 Assignment. To the extent any Work performed by Developer does not qualify as a “work made for hire” under applicable law, Developer hereby irrevocably and unconditionally assigns to Client, without further compensation, all of its right, title and interest in and to the Software and any and all related patents, copyrights, trademarks, and trade names in the United States and elsewhere. This assignment is conditioned upon full payment of the undisputed compensation due to Developer under this Agreement. To the extent any of Developer’s rights in the Software, including without limitation any moral rights, are not capable of assignment under applicable law, Developer hereby irrevocably and unconditionally waives all enforcement of such rights to the maximum extent permitted under applicable law. Developer will assist Client in obtaining and enforcing patent, copyright and other forms of legal protection for the Software in any country. Upon request, Developer will sign all applications, assignments, instruments and papers and perform all acts necessary or desired by Client to assign the Software fully and completely to Client and to enable Client, its successors, assigns and nominees, to secure and enjoy the full and exclusive benefits and advantages of the Software at no charge to Client; however, Client shall reimburse Developer for reasonable out-of-pocket expenses.

7. WARRANTIES AND DISCLAIMERS

7.1 Software. The Software furnished under this Agreement is provided on an “as is” basis, without any warranties of quality, merchantability or fitness for a particular

purpose. Developer does not warrant that the software will meet Client's needs or be free from errors or that the operation of the software will be uninterrupted. The foregoing exclusions and disclaimers are an essential part of the Agreement and formed the basis for determining the price charged for the Software.

7.2 Performance Standard. Developer warrants the Work will be performed in a workmanlike manner, and in conformity with generally prevailing industry standards. In the event Client reports any material deficiencies in the Work to Developer in writing within thirty (30) days after Client receives the Work. Client's exclusive remedy for the breach of this warranty will be the re-performance of the Work in accordance with the time periods set forth in Section 3.2.

7.3 No Infringement. Developer warrants the Software will not infringe on any copyright, patent, trade secret or other intellectual property interest of any third party. Developer will indemnify and hold Client harmless from and against all such infringement claims, losses, suits and damages including, but not limited to attorney's fees and costs. Following any bona-fide claim of infringement, Developer shall promptly correct the Software so as not to be infringing, or secure (at its own expense) the right of Client to use the Software without infringement.

7.4 No Third Party Warranties. Developer makes no warranty of any kind, whether express or implied, with regard to any products, software, content, equipment, or hardware obtained from third parties.

7.5 Representations and Warranties.

> **7.5.1 Each Party represents and warrants that:** (i) they have full power, authority, and right to perform its obligations under the Agreement; (ii) this Agreement is a legal, valid and binding obligation of each Party, enforceable against it in accordance with its terms; (iii) entering into this Agreement will not violate the charter or bylaws of either Party or any material contract to which that Party is also a Party.

7.5.2 Developer represents, warrants, and covenants to Client (on behalf of itself and where applicable) that:

- All Deliverables shall substantially conform to all specifications, and the Deliverables and all other materials presented or delivered to Client are and will be original, and not copied in whole or in part from any other work, except materials in the public domain or supplied to Client by third party permission or authority;
- Developer and its personnel, are the only party performing the Services under this Agreement, and no other sub-contractor or third party will perform any of the Services, unless authorized by Client in writing;
- Developer will at all times comply with all applicable laws in the performance of the Services;
- The Services will be performed in a thorough and professional manner, consistent with high professional and industry standards by individuals with the requisite training, background, experience, technical knowledge and skills to perform Services;
- Developer has no pre-existing obligations or commitments (and will not assume or otherwise undertake any obligations or commitments) that would be in conflict or inconsistent with or that would hinder Developer's performance of its obligations under this Agreement;
- To Developer's actual knowledge without investigation, the Deliverables will not infringe, misappropriate or violate the rights of any third party, including, without limitation, any Intellectual Property Rights or any rights of privacy or rights of publicity, except to the extent any portion of the Deliverables are created, developed or supplied by Client or by a third party on behalf of Client;
- The Deliverables, when delivered or accessed by Client, will be free from viruses, logic locks, and other disabling devices or codes, and in particular will not contain any virus, Trojan horse, worm, drop-dead devices, trap doors, time bombs, or other software

routines or other hardware component that could permit unauthorized access, disable, erase, or otherwise harm any software, hardware, or data, cause any application, software or hardware to perform any functions other than those specified in this Agreement, halt, disrupt, or degrade the operation of any application or software.

7.6 Portfolio. We are proud of our work and like to show it off. This paragraph explains how we can represent you and the work we do for you in our portfolio. Once you have released our work to the public, we may use your name, logo, images of our work, and a description of our work in our portfolio and social channels. We may also submit our work to websites and professional publications for professional recognition.

8. LIMITATION OF LIABILITY EXCEPT WHERE A PARTY HAS BEEN GROSSLY NEGLIGENT OR ENGAGED IN INTENTIONAL MISCONDUCT, AND EXCEPT FOR A PARTY'S INDEMNIFICATION OBLIGATIONS SET FORTH HEREIN, NEITHER PARTY WILL BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE OR EXEMPLARY DAMAGES ARISING AS A RESULT OF OR RELATED TO PERFORMANCE OF THE WORK, REGARDLESS OF THE TYPE OF CLAIM AND EVEN IF THAT PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, SUCH AS, BUT NOT LIMITED TO, LOST PROFITS, LOSS OF REVENUE OR ANTICIPATED PROFITS OR LOST BUSINESS.

9. NON-SOLICITATION During the period of this Agreement and for 24 months thereafter, regardless of the reason or cause for that termination, neither Party will directly or indirectly engage in any conduct that will substantially diminish the value of the other Party's business including, without limitation solicit or attempt to solicit any business from any of the other Party's customers, clients, or prospects.

10. GENERAL CONDITIONS

10.1 Governing Law. This Agreement is governed by the laws of the United States and the state of California, without reference to rules governing choice of laws. If any dispute arises concerning this Agreement, venue shall be laid exclusively in the state and federal courts of San Francisco, California which shall have exclusive jurisdiction over such dispute and the Parties consent to the personal jurisdiction of such courts. If legal action or other proceeding of any nature whatsoever is brought in connection with any dispute arising out of this Agreement, the prevailing Party shall be entitled to recover from the non-prevailing Party all attorneys' fees and costs incurred by the prevailing Party in connection with such dispute.

10.2 Excusable Delays. Developer shall not be responsible for delays or failures in performance resulting from acts beyond the control of Developer, including, without limitation, acts of God, strikes, riots, acts of war, epidemics, pandemics, fire, communication and power line failures, earthquakes, and hurricanes.

10.3 Assignment. The rights, duties, and privileges of a Party to this Agreement shall not be transferred or assigned by it, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

10.4 Severability. In case of any one or more of the provisions of this Agreement should be held invalid, illegal or unenforceable, each such provision shall be modified, if possible, to the minimum extent necessary to make it valid and enforceable, or if it cannot be so modified, then severed, and the remaining provisions contained in this Agreement shall not in any way be affected or impaired.

10.5 No Waiver. Neither Party's failure to enforce strict performance of any provision of this Agreement will constitute a waiver of a right to subsequently enforce such a provision. No modification, extension or waiver of this Agreement shall be valid unless made in writing and signed by an authorized representative of the Party to be charged. No written waiver shall constitute, or be construed as, a waiver of any other obligation or condition of this Agreement.

10.6 Notices. All notices, demands or other communications required or permitted to be given under this Agreement by either Party to the other may be effectuated either by personal delivery in writing or by U.S. mail, registered or certified, postage prepaid with return receipt requested. Mailed notices shall be addressed to the other Party at the address appearing in the introductory paragraph of this Agreement, but each Party may change such address by written notice in accordance with this paragraph. Notices delivered personally will be deemed communicated as of actual receipt. Mailed notices will be deemed communicated as of two (2) days after mailing.

10.7 Counterparts. The Parties may execute this Agreement in multiple counterparts, each of which constitutes an original as against the Party that signed it, and all of which together constitute one agreement. The signatures of all Parties need not appear on the same counterpart. The delivery of signed counterparts by facsimile, email or other electronic transmission that includes a copy of the sending Party's signature is as effective as signing and delivering the counterpart in person.

10.8 Entire Agreement; Amendment. This Agreement constitutes the entire agreement between the Parties concerning the subject matter hereof and supersedes all written or oral prior agreements or understandings with respect thereto. This Agreement may not be amended except by a writing signed by an authorized representative of both Parties.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives, as of the Effective Date.

Facilitate

By: **Tal Cohen** 

Name: **Facilitate Inc.**

Title: **Chief Executive Officer**

Vehicle Marketplace Platform

By: **Antonio Cadet**

Name:

Title:

Exhibit “A”

Scope of Work

- **Project setup**
  - AWS Dev + Production backend environments (ECS, Fargate)
  - Github repository setup
  - React Native + Expo app setup
  - Linter/prettify setup
  - Email setup (SendGrid/Mailchimp/SES)
  - Phone verification

- **Cross-platform application for web, iOS, and Android from a single codebase, covering all member, Runner, Dealer Partner, and Specialist workflows**
- **Authentication with email/password and Google/Apple sign-in, including role selection (Member, Runner, Dealer Partner, Specialist) and session management**
- **Member profiles with create, edit, and view functionality, plus public dealer profile pages**
- **Vehicle listings CRUD with photo uploads, VIN, make, model, year, mileage, price, and description, including dealer-flagged inventory**
- **Marketplace browse with search, filtering (make, price, mileage, dealer/member), sorting, and listing detail pages**
- **Runner job board with transport job CRUD, job acceptance and completion actions, and end-to-end status tracking**
- **Specialist directory with profiles and service request CRUD, job claiming, and status updates by specialists**
- **In-app messaging between members with conversation list, message CRUD, and unread indicators**
- **Wallet ledger displaying credit balance, referral earnings, and transaction history, with Stripe checkout for platform transaction and listing fees, referral links that credit the wallet on signup, email/SMS notifications, and an admin panel for users, listings, jobs, and transactions**

Exhibit “B”

Delivery and Payment Schedule

Project Milestones

- Milestone A
    - Date: 10/15-10/22
    - Deliverables: Milestone 1 — Foundation, Authentication, and Profiles — Set up the cross-platform web/mobile project, database, and hosting. Implement email/password and Google/Apple sign-in, role field (Member, Runner, Dealer Partner, Specialist), password reset, and member profile create, edit, and view screens for web and mobile.
    - Amount: $2,000

- Milestone B
    - Date: 10/22-10/29
    - Deliverables: Milestone 2 — Vehicle Listings and Marketplace — Build vehicle listing CRUD with photo uploads, VIN, make, model, year, mileage, price, description, and dealer flag. Deliver marketplace browse for web and mobile with keyword search, filters, sorting, and listing detail pages linked to member and dealer profiles.
    - Amount: $2,000

- Milestone C
    - Date: 10/29-11/5
    - Deliverables: Milestone 3 — Runner Jobs, Dealer Inventory, and Specialist Services — Build the Runner job board with transport job CRUD, accept and complete actions, and status tracking (posted, accepted, in transit, completed, cancelled). Add dealer inventory views and dealer profile pages. Build the specialist directory and service request flow with request CRUD, claim action, and status updates.
    - Amount: $2,000

- Milestone D
    - Date: 11/5-11/12
    - Deliverables: Milestone 4 — Messaging, Wallet, and Referrals — Implement in-app messaging between members with conversation list and message CRUD. Build the wallet ledger UI showing credit balance, referral earnings, and full transaction history. Add unique referral links per user with automatic wallet credit applied on referred signup.
    - Amount: $2,000

- Milestone E
    - Date: 11/12-11/19
    - Deliverables: Milestone 5 — Payments, Notifications, Admin Panel, and Launch — Integrate Stripe checkout for platform transaction and listing fees with payment confirmation and transaction records. Add transactional email and SMS notifications for account, booking/job, and payment events. Build the admin panel with CRUD and moderation for users, listings, jobs, and transactions. Complete QA, store submission builds, and production launch for web, iOS, and Android.
    - Amount: $2,000

- Total: $10,000